



Administration of Justice Act 1965

1965 CHAPTER 2

An Act to enable common investment funds to be established for the investment of moneys in certain courts in England, Wales and Northern Ireland and certain other moneys; to make fresh provision for dealing with funds in the Supreme Court of Judicature in England and to amend the law concerning dealing with funds in county courts in England and Wales or in the Mayor's and City of London Court; to amend the law concerning giving security by way of making a deposit with the Accountant General of the Supreme Court of Judicature in England; to make miscellaneous amendments of the law relating to that court and to inferior courts in England and Wales; to amend section 8 of the Prosecution of Offences Act 1879; to enable benefits under section 10 of the Courts of Justice Concentration (Site) Act 1865 to be commuted into capital sums; to amend the War Pensions (Administrative Provisions) Act 1919; to enlarge the legislative power of the Parliament of Northern Ireland and amend the Criminal Appeal (Northern Ireland) Act 1930; to repeal certain obsolete, spent, unnecessary or superseded enactments; and for purposes connected with the matters aforesaid.

[23rd March 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

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FUNDS IN COURT IN ENGLAND AND WALES

Common Investment Funds for Investment of Money in Court and Statutory Deposits

Schemes for
establishment of
common investment
funds.

1.—(1) Schemes establishing common investment funds for the purpose of the investment therein of moneys in the Supreme Court, moneys in county courts, moneys in the Mayor's and City of London Court and statutory deposits may be made by the Lord Chancellor.

1959 c. 22.

(2) Such a scheme (hereafter in this Act referred to as a "common investment scheme") shall provide for the fund thereby established to be under the management and control of the Public Trustee and for the investment by him in accordance with the provisions of this section of sums of money transferred to the fund in pursuance of rules made under the following provisions of this Act with respect to funds in the Supreme Court, rules made under section 168 of the County Courts Act 1959 with respect to funds in county courts, rules made under section 169 of that Act with respect to funds in the Mayor's and City of London Court or statutory deposit regulations.

(3) A common investment scheme shall make provision for treating the fund thereby established as being divided into shares, and a sum invested therein as being represented by a number of shares determined by reference to that sum and the value of the fund at the time when the investment was made.

(4) A common investment scheme shall make provision for the allotment of the shares into which the fund thereby established is divided to, and their holding by, the Accountant General, but no other person.

(5) Moneys comprised in the fund established by a common investment scheme may be invested by the Public Trustee in any way in which he thinks fit, whether or not authorised by the general law in relation to trust funds.

(6) A common investment scheme may, without prejudice to the foregoing provisions of this section, make provision for, and for all matters connected with, the establishment, investment, management and winding up of the fund thereby established and may in particular include provision—

- (a) for regulating the allotment to, and the realisation by, the Accountant General of shares in the fund, and for the payment by the Accountant General for shares therein allotted to him, and by the Public Trustee for shares realised by the Accountant General;
- (b) for regulating the distribution of income and its payment to the Accountant General, and for enabling income to be withheld from distribution with a view to avoiding fluctuations in the amounts distributed;

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- (c) for determining, without regard to any rule of law applicable to trust funds, whether any cash or property received by the Public Trustee in respect of property comprised in the fund shall be treated as income or as capital and, where necessary, for its apportionment between income and capital;
- (d) for enabling moneys to be borrowed temporarily for the purpose of the management or improvement of any property comprised in the fund or otherwise for the purpose of meeting payments to be made out of the fund;
- (e) for any incidental or supplementary matters for which it appears to the Lord Chancellor requisite or expedient to make provision for the purposes of the scheme.

(7) The Public Trustee shall not be required or entitled to take account of any trusts or equities affecting any share in a fund established by a common investment scheme.

(8) There shall be charged on the Consolidated Fund any increase attributable to this section in the sums payable out of that Fund under section 7 of the Public Trustee Act 1906. 1906 c. 55.

(9) The power conferred by subsection (1) of this section to make a common investment scheme shall include power exercisable in the like manner to vary or revoke such a scheme.

2.—(1) The Public Trustee Act 1906 shall have effect subject to the following modifications:—

Consequential
modifications
of Public
Trustee Act
1906.

- (a) in section 8(5) of that Act (which provides for the payment out of moneys provided by Parliament of the expenses of carrying that Act into effect) the reference to that Act shall be construed as including a reference to common investment schemes;
- (b) in section 9(1) of that Act (which provides for the charge of fees in respect of the duties of the Public Trustee) the reference to those duties shall be construed as referring as well to his duties under schemes made under the foregoing section as to his duties under that Act;
- (c) in section 9(3) of that Act (which provides for the payment of fees into the Exchequer so far as they are not applied as an appropriation in aid of moneys provided by Parliament for expenses under that Act) and in section 9(4) thereof (which requires fees to be so arranged as to produce an annual amount sufficient to discharge the expenses incidental to the working of that Act) the references to that Act shall be construed as including references to common investment schemes.

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(2) The following provisions of the Public Trustee Act 1906, that is to say,—

(a) so much of section 11(2) of that Act as requires the Public Trustee to take into consideration the wishes of the creator of the trust and of the other trustees and of the beneficiaries ; and

(b) section 13 of that Act (investigation and auditing of accounts of trust) ;

shall not have effect in relation to the trusts constituted by a common investment scheme.

Funds in the Supreme Court

Accountant
General to
maintain an account
at Bank of England.

3. The Accountant General shall maintain an account at the Bank of England and shall pay into that Bank to the credit of that account all sums received by him and out of that Bank to the debit of that account all sums payable by him.

Mode of
effecting
payment of
money and
transfer of
securities, &c.,
into Supreme
Court.

1925 c. 49.

4.—(1) The payment of money into the Supreme Court shall, except in a case in which it is made in connection with a cause or matter (as respectively defined by section 225 of the Supreme Court of Judicature (Consolidation) Act 1925) proceeding in a district registry established by virtue of section 84 of that Act, be effected by paying it into the Bank of England to the credit of the Accountant General's account and, in the said excepted case, shall be effected in such manner as may be prescribed in relation to that registry by rules made by the Lord Chancellor with the concurrence of the Treasury.

(2) The transfer into the Supreme Court of securities (other than such as are transferable by delivery) shall be effected by transferring them to the Accountant General.

(3) The deposit in the Supreme Court of effects, and the transfer into that court of securities transferable by delivery, shall be effected by delivering them to the Bank of England to hold them in custody to the Accountant General's order.

Transmission of
money, &c., from
Accountant General
to successor.

5. Money and securities held by the Accountant General shall vest in his successor in office without any assignment or transfer.

Mode in
which money
in Supreme
Court may be
dealt with.

1959 c. 22.

6.—(1) Save in a case in which it is provided by an order of the court that it shall not be placed or invested as mentioned in the following provisions of this subsection, and subject to any provision to the contrary made by rules made under the next following section, a sum of money in the Supreme Court (not being a sum the subject of an order under section 174 of the County Courts Act 1959 or a sum under the control of the mental health authority)—

(a) may, if the court so orders, be dealt with in such of the following ways as may be specified in the order, namely:—

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(i) it may be placed, in accordance with rules so made, to a deposit account or a short-term investment account (that is to say, to an account of one or other of two kinds such that, in the case of an account of either kind, there will, under rules so made, but subject to any exceptions thereby prescribed, fall to accrue on moneys placed thereto interest derived from the transfer to, and investment by, the Commissioners of the moneys placed to all the accounts of those kinds) ;

(ii) it may be placed to a long-term investment account for transfer, under rules so made, to such one of the funds established by common investment schemes as may be so specified ;

(iii) it may be invested by the Accountant General in such of the securities designated for the purposes of this paragraph by rules made under section 99 of the Supreme Court of Judicature (Consolidation) Act 1925 as may be so specified ;

1925 c. 49.

(b) shall, if no order is made with respect to it under the foregoing paragraph, be dealt with as follows :—

(i) except in a case in which it was paid in under section 63(1) of the Trustee Act 1925, it shall be placed, in accordance with rules made under the next following section, to a deposit account ;

1925 c. 19.

(ii) in the said excepted case, it shall be invested by the Accountant General in such manner as may be prescribed by rules so made.

(2) Save in a case in which it is provided by an order of the mental health authority that it shall not be placed or invested as mentioned in the following provisions of this subsection, and subject to any provision to the contrary made by rules made under the next following section, a sum of money in the Supreme Court that is under the control of the mental health authority—

(a) may, if that authority so orders, be dealt with in such of the following ways as may be specified in the order, namely :—

(i) it may be placed to a deposit account or a short-term investment account ;

(ii) it may be placed to a long-term investment account for transfer, under rules so made, to such one of the funds established by common investment schemes as may be so specified ;

(iii) it may be invested by the Accountant General in any such security as may be so specified ;

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- (b) shall, if no order is made with respect to it under the foregoing paragraph, be placed, in accordance with rules so made, to a deposit account.

Rules as to
funds in
Supreme
Court.

7.—(1) The Lord Chancellor, with the concurrence of the Treasury, may make rules regulating, subject to the provisions of section 4 of this Act, the deposit, payment, delivery and transfer in, into and out of the Supreme Court of money, securities and effects which belong to suitors or are otherwise capable of being deposited in, or paid or transferred into, the Supreme Court or are under the custody of the Supreme Court, and regulating the evidence of such deposit, payment, delivery or transfer and, subject to the provisions of section 6 of this Act, the manner in which money, securities and effects in court are to be dealt with, and in particular—

- (a) providing (subject to any exceptions prescribed by the rules) for the accruer of interest on moneys placed to deposit accounts and short-term investment accounts and prescribing the rate at which interest on moneys placed to deposit accounts and the rate at which interest on moneys placed to short-term investment accounts is to accrue ;
- (b) requiring the Accountant General—
 - (i) to transfer to the Commissioners all money paid into the Supreme Court which is not required by him for meeting current demands, except money placed to a long-term investment account or ordered to be invested in securities other than of a kind designated by virtue of paragraph (d) below ;
 - (ii) to transfer money placed to a long-term investment account to that one of the funds established by common investment schemes specified in the order pursuant to which it was so placed ;
- (c) prescribing for the purposes of section 6(1)(b)(ii) of this Act the manner of investment of money by the Accountant General and regulating the investment, pursuant to an order under subsection (1) or (2) of that section, of money in securities ;
- (d) establishing in relation to securities of a kind designated by the Accountant General (in a case in which the establishment thereof appears to the Lord Chancellor expedient in the interests of economical administration) a system under which—
 - (i) the making of investments of moneys in securities of that kind which, in pursuance of orders of the court or the mental health authority, would, apart from the operation of the system, fall to be made by the Accountant General in an accounting year ; and

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(ii) the effecting of realisations of securities of that kind which, in pursuance of such orders, would, apart from the operation of the system, fall to be effected by him in that year;

are postponed so as to enable them to be contemporaneously made and effected together by means of a single transaction completed as soon as may be after the conclusion of that year, but the investments and realisations are, despite the postponement, required to be treated for all purposes as having been severally made and effected at the times at which they would, apart from the operation of the system, have fallen to be made and effected;

(e) regulating the crediting of interest accruing on moneys placed to deposit accounts and on moneys placed to short-term investment accounts and the crediting of dividends accruing on shares in funds established by common investment schemes which have been allotted in consideration of the transfer of money in compliance with such provision of the rules as has effect by virtue of paragraph (b)(ii) above and of interest or dividends accruing on securities in which money has been invested by the Accountant General pursuant to an order of the court or the mental health authority or to section 6(1)(b)(ii) of this Act and on other securities in court;

(f) providing—

(i) that, in such cases as may be prescribed by the rules, no sum of money (whatever its amount) shall be placed to a deposit account or a short- or long-term investment account or be invested in securities;

(ii) that, in no case, shall a sum of money of an amount less than such as may be so prescribed be placed to, or remain in, a deposit account, be placed to a short- or long-term investment account or be invested in securities;

(g) prescribing the time at which money which falls to be placed to a deposit account or short-term investment account is to be so placed and the times at which interest on money so placed is to begin and cease to accrue and the mode of computing any such interest;

(h) providing that, in such circumstances as may be prescribed by the rules, interest and dividends such as are mentioned in paragraph (e) above shall be placed to deposit accounts or short- or long-term investment accounts;

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- (i) providing for dealing with accounts which, subject to such, if any, exceptions as may be prescribed by the rules, have not been dealt with for such period (not being less than fifteen years) as may be so prescribed ;
- (j) prescribing the manner in which money is to be furnished to the Accountant General by the Commissioners and the Public Trustee respectively for the purpose of enabling him to comply with orders of the court or the mental health authority as to the payment of money out of court ;
- (k) providing for the discharge of the functions of the Accountant General under the rules by deputy ;
- (l) providing for such matters as are incidental to, or consequential on, the foregoing provisions of this subsection or are necessary for giving effect to those provisions.

(2) Rules made under the foregoing subsection may contain such provision as appears to the Lord Chancellor to be requisite or expedient for the purposes of the transition to the provisions of this Part of this Act and the rules from the law embodied in, and in rules under, the provisions of Part VI of the Supreme Court of Judicature (Consolidation) Act 1925 repealed by this Act.

1925 c. 49.

(3) Until revoked or altered under the powers of subsection (1) of this section, any rules made under Part VI of the Supreme Court of Judicature (Consolidation) Act 1925 which are in force at the commencement of this Act shall continue in force and have effect as if made under that subsection.

Provision of money for making good default of Accountant General with respect to funds in Supreme Court.

8. If the Lord Chancellor, whether on a representation made to him by any person interested or not, certifies that the Accountant General has been guilty of any default with respect to any money, securities or effects in the Supreme Court, such sum as may be certified by the Lord Chancellor to be necessary for making good the default shall be paid out of moneys provided by Parliament or, if and so far as it is not so paid, shall be charged on and issued out of the Consolidated Fund.

Amendments of Part X of County Courts Act 1959

Amendment of section 168 of County Courts Act 1959, and consequential amendment of section 172 thereof.

1959 c. 22.

9.—(1) For paragraphs (a) to (h) of section 168 of the County Courts Act 1959 (which empowers the Lord Chancellor, with the concurrence of the Treasury, to make rules as to funds in county courts) there shall be substituted the following paragraphs:—

“(a) regulating the placing of money in court (with such exceptions as may be prescribed)—

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(i) to a deposit account or a short-term investment account (that is to say, to an account of one or other of two kinds such that, in the case of an account of either kind, there will, under the rules, but subject to any prescribed exceptions, fall to accrue on moneys placed thereto interest derived from the transfer to, and investment by, the Commissioners of the moneys placed to all the accounts of those kinds); or

(ii) to a long-term investment account for transfer, under the rules, to one of the funds established by schemes made under section 1 of the Administration of Justice Act 1965;

and providing, in the case of money placed to a long-term investment account, for the designation of the fund to which it is to be transferred;

(b) providing (subject to any prescribed exceptions) for the accruer of interest on moneys placed to deposit accounts and short-term investment accounts and prescribing the rate at which interest on moneys placed to deposit accounts and the rate at which interest on moneys placed to short-term investment accounts is to accrue;

(c) requiring registrars to transfer from time to time to the Accountant General all money in court that has been placed to long-term investment accounts and all other money in court which is not required by them for meeting current demands, and requiring the Accountant General—

(i) to transfer to the Commissioners all money transferred to him under the rules which is not required by him for meeting current demands, other than money placed to long-term investment accounts;

(ii) to transfer money placed to a long-term investment account to that one of the funds mentioned in paragraph (a) above which has, in pursuance of such provision of the rules as has effect by virtue of that paragraph, been designated in relation to that money;

(d) regulating the crediting of interest accruing on moneys placed to deposit accounts and on moneys placed to short-term investment accounts and the crediting of dividends accruing on shares in funds established by schemes made under section 1 of the Administration of Justice Act 1965 which have been allotted in consideration of the transfer of money in compliance

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with such provision of the rules as has effect by virtue of paragraph (c)(ii) above and of interest or dividends accruing on other securities in court ;

- (e) prescribing the time at which money in court which falls to be placed to a deposit account or short-term investment account is to be so placed and the times at which interest on money so placed is to begin and cease to accrue and the mode of computing any such interest ;
- (f) providing that, in such circumstances as may be prescribed, interest and dividends such as are mentioned in paragraph (d) above shall be placed to deposit accounts or short- or long-term investment accounts ;
- (g) requiring the annual publication of lists of accounts which have not been dealt with for such period as may be prescribed (not being less than fifteen years in the case of deposit accounts and of short- and long-term investment accounts or five years in the case of other accounts), and requiring the closing of any account included in any such list if the money standing to the credit of it (if it is other than a long-term investment account) or the money represented by shares in an investment fund allotted in consideration of the transfer to the fund of money placed to the account (if it is a long-term investment account) is not claimed within such period after the publication of the list as may be prescribed and, if it is a long-term investment account, the realisation of the shares allotted as aforesaid ;”

and, in paragraph (i) of that section, after the words “the Commissioners” there shall be inserted the words “and the Public Trustee respectively”.

(2) For section 172 of the said Act of 1959 (which, while requiring the application, in redemption of debt, of moneys standing to the credit of an account closed in pursuance of rules made under section 168 of that Act, provides for the payment, to a person who subsequently proves that he would have been entitled to, or to part of, the money standing to the credit of the account had it not been closed, of the money to which he would have been entitled, together, if the court so directs, with interest thereon) there shall be substituted the following section:—

“ 172.—(1) Where an account other than a long-term investment account is closed in pursuance of the County Court Funds Rules, the money which, immediately before it is closed, stands to its credit shall be paid to the Commissioners and applied by them in redemption of debt ; and where a long-term investment account is closed in

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pursuance of the County Court Funds Rules, the proceeds of the realisation, on its closure, of shares in an investment fund allotted in consideration of the transfer to the fund of money placed to the account shall be so paid and applied.

(2) Where, in the case of an account that has been closed in pursuance of the County Court Funds Rules (other than a long-term investment account) a person proves to the satisfaction of the court by which the account was kept that he is entitled to, or to part of, the money that, immediately before the account was closed, stood to its credit, the court shall make an order for the payment to him of the money to which he is entitled together (if the court so directs) with all or any part of any interest which would have accrued on the money had the account not been closed; and where, in the case of a long-term investment account that has been closed as aforesaid, a person proves to the satisfaction of the court by which the account was kept that he is entitled to, or to part of, the money representing the proceeds of the realisation, upon its closure, of shares in an investment fund allotted in consideration of the transfer to the fund of money placed to the account, the court shall make an order for the payment to him of the money to which he is entitled together (if the court so directs) with all or any part of the interest which would have accrued on the money had it been placed to a short-term investment account on the date on which the said long-term investment account was closed.

(3) The amount required to comply with an order of a court under the last foregoing subsection shall be paid out of the Consolidated Fund to the Accountant General ”.

10. If the Lord Chancellor, whether on a representation made to him by any person interested or not, certifies that the Accountant General has been guilty of any default with respect to any money or securities in a county court in England or Wales, such sum as the Lord Chancellor certifies to be necessary for making good the default shall be paid out of moneys provided by Parliament or, if and so far as it is not so paid, shall be charged on and issued out of the Consolidated Fund.

Provision of money for making good default of Accountant General with respect to funds in county courts.

11. The power of the Lord Chancellor under section 169 of the County Courts Act 1959 to make separate funds rules for the Mayor's and City of London Court shall not include power to require the Chamberlain of the City of London to transfer money as mentioned in paragraph (c) of section 168 of that Act but shall include power to require him to transfer to the Accountant General money placed to a long-term investment account and the Accountant General to transfer it as mentioned in sub-paragraph (ii) of that paragraph.

Consequential amendment with respect to Mayor's and City of London Court.

1959 c. 22.

PART I *Investment of Money transferred under Funds Rules to, and ultimate Liability of Consolidated Fund for Payments under such Rules by, the National Debt Commissioners*

Investment of money transferred under funds rules to National Debt Commissioners.

1959 c. 22.

12.—(1) The Commissioners may invest, in such manner as may be prescribed by regulations made by the Treasury, money transferred to them in pursuance of rules made under section 7 of this Act or section 168 of the County Courts Act 1959, and the interest or dividends accruing on investments made under this subsection.

(2) If in any accounting year the aggregate of the sums of money received by the Commissioners by way of interest and dividends on investments made by them under the foregoing subsection, after deduction of any sum required by the Treasury to be set aside to provide for depreciation in the value of investments so made, exceeds the aggregate of the sums due to be paid or credited in respect of that year by way of interest on moneys placed in the Supreme Court and in the county courts to deposit and short-term investment accounts, the excess shall be paid into the Exchequer; and if, in any accounting year, the aggregate of the sums of money received as aforesaid, after deduction of any sum required by the Treasury to be set aside as aforesaid, is less than the aggregate of the sums due as aforesaid, the deficiency shall be made good out of the Consolidated Fund.

(3) If, at any time, the Treasury are satisfied that the investments held by the Commissioners in consequence of the exercise of the power conferred by subsection (1) of this section exceed in value what is reasonably required for the purposes of rules made under section 7 of this Act and rules made under section 168 of the County Courts Act 1959, they may direct the Commissioners so to reduce those investments that their value is diminished by such amount (being an amount equal to the excess) as may be specified in the direction; and the reduction shall, according as the Commissioners may determine, be effected—

(a) by the cancellation of investments consisting of securities the principal of which, and the interest on which, are charged on the Consolidated Fund; or

(b) by the realisation of investments not so consisting;

or partly in the one way and partly in the other.

(4) Any sums received by the Commissioners upon the realisation of investments in pursuance of the last foregoing subsection shall be paid into the Exchequer and shall be issued out of the Consolidated Fund at such times as the Treasury may direct, and shall be applied by the Treasury in redeeming or paying off debt of such description as they think fit.

13. If at any time the Commissioners are unable to pay to the Accountant General a sum due from them to him under rules made under section 7 of this Act or section 168 of the County Courts Act 1959 the Treasury shall provide them with it out of the Consolidated Fund.

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Ultimate liability of Consolidated Fund for payments under funds rules by National Debt Commissioners.

1959 c. 22.

Special Provisions with respect to Statutory Deposits, &c.

- 14.—(1) Section 4(1) of this Act shall apply to the deposit of money with the Accountant General under or by virtue of—
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| (a) section 12 of the Tramways Act 1870 ; | Special provisions with respect to statutory deposits, &c. 1870 c. 78. |
| (b) section 11 of the Light Railways Act 1896 ; | 1896 c. 48. |
| (c) section 7 of the Industrial Assurance Act 1923 ; | 1923 c. 8. |
| (d) section 43 of the Civil Aviation Act 1949 ; | 1949 c. 67. |
| (e) section 4 of the Prevention of Fraud (Investments) Act 1958 ; | 1958 c. 45. |
| (f) paragraph 1 of Schedule 2 to the Insurance Companies Act 1958 ; or | 1958 c. 72. |
| (g) section 202 or 204 of the Road Traffic Act 1960 ; | 1960 c. 16. |

as it applies to the payment of money into the Supreme Court ; and section 4(2) and (3) of this Act shall apply to the deposit with the Accountant General of securities in lieu of money in exercise of a right to make such a deposit conferred by section 12 of the Tramways Act 1870 or by regulations made under any of the enactments mentioned in subsection (5) below as they apply to the transfer of securities into the Supreme Court.

(2) Sections 6 to 8 of this Act shall not apply to money deposited with the Accountant General under or by virtue of any of the enactments mentioned in paragraphs (a) to (g) of the foregoing subsection or under—

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|---|-------------|
| (a) section 35 or 37 of the Road Traffic Act 1930 ; or | 1930 c. 43. |
| (b) section 4 of the Prevention of Fraud (Investments) Act 1939 ; | 1939 c. 16. |

or to securities which are in the hands of the Accountant General in consequence of a person's having availed himself of such a right as aforesaid.

(3) Statutory deposit regulations may apply for the purposes thereof any of the provisions (with or without modification) of rules for the time being in force under section 7 of this Act.

(4) If the Lord Chancellor certifies, whether on a representation made to him by any person or not, that the Accountant General has been guilty of any default with respect to a statutory deposit made with him or with respect to any such securities as are mentioned in subsection (2) above, such sum as the Lord Chancellor certifies to be necessary for making good the default shall be paid out of moneys provided by Parliament or, if and so far as it is not so paid, shall be charged on and issued out of the Consolidated Fund.

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(5) The enactments referred to in subsection (1) above with reference to this subsection are—

- 1909 c. 49. (a) section 2 of the Assurance Companies Act 1909 ;
- 1939 c. 16. (b) section 4 of the Prevention of Fraud (Investments) Act 1939 ;
- 1946 c. 28. (c) section 5(3) of the Assurance Companies Act 1946 ;
- 1949 c. 67. (d) paragraph 7(2) of Schedule 6 to the Civil Aviation Act 1949 ;
- 1958 c. 45. (e) section 4 of the Prevention of Fraud (Investments) Act 1958 ;
- 1958 c. 72. (f) section 20 of the Insurance Companies Act 1958 ; and
- 1960 c. 16. (g) section 210 of the Road Traffic Act 1960.

Supplementary Provisions

Accounts.

- 15.—(1) The Accountant General and the Public Trustee shall, in respect of the period beginning with the commencement of this Act and ending with the last day of February next following, and in respect of each accounting year beginning after that commencement, each prepare, in such form as the Treasury may direct, such accounts of his transactions under common investment schemes, rules made under section 7 of this Act, rules made under section 168 of the County Courts Act 1959, rules made under section 169 of that Act and statutory deposit regulations as the Treasury may direct, and shall send them to the Comptroller and Auditor General not later than the end of October following ; and the National Debt Commissioners shall, in respect of the period beginning with the commencement of this Act and ending with the last day of February next following, and in respect of each accounting period beginning after that commencement, prepare in such form as the Treasury may direct, such accounts of their transactions under rules made under the said section 7 and rules made under the said section 168 and of their transactions under section 12 of this Act as the Treasury may direct, and shall send them to the Comptroller and Auditor General not later than the end of October following.

(2) The Comptroller and Auditor General shall examine, certify and report on accounts sent to him under the foregoing subsection and lay copies of them and of his report thereon before each House of Parliament.

(3) The transactions under rules made under section 168 of the County Courts Act 1959 of which accounts are, by section 173 of that Act, required to be kept by the Accountant General and the Commissioners shall not include any effected after the commencement of this Act.

- 1906 c. 55. (4) In section 14(1) of the Public Trustee Act 1906 (which specifies purposes for which rules are to be made), the reference to accounts to be kept shall be construed as not including

accounts of transactions of which accounts are required by subsection (1) above to be kept by the Public Trustee.

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16. Any power conferred by this Part of this Act to make a scheme, or rules or regulations, shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Parliamentary control of powers to make schemes, rules and regulations.

17.—(1) The enactments specified in column 1 of Schedule 1 to this Act shall have effect subject to the amendments respectively specified in relation thereto in column 2 of that Schedule (being amendments necessary for bringing those enactments into conformity with this Part of this Act).

Amendments of Acts to secure conformity with Part I of this Act.

(2) Without prejudice to section 23 of the Interpretation Act 1889 or any corresponding enactment of the Parliament of Northern Ireland, any reference in an Act passed or other instrument made before the commencement of this Act which is, or includes, a reference to a provision of the Lands Clauses Consolidation Act 1845 that is amended by this Act shall, unless the contrary intention appears, be construed as referring, or as including a reference, to that provision as so amended.

1889 c. 63.

1845 c. 18.

18. In this Part of this Act and in Schedule 1 to this Act the following expressions have the meanings hereby assigned to them respectively, that is to say,—

Interpretation of Part I and Schedule 1.

“the Accountant General” means the Accountant General of the Supreme Court;

“accounting year” means a period of twelve months beginning with 1st March;

“the Commissioners” means the National Debt Commissioners;

“common investment scheme” has the meaning assigned to it by section 1(2) of this Act;

“the Consolidated Fund” means the Consolidated Fund of the United Kingdom;

“county court” means a county court in England or Wales;

“the mental health authority” means the authority having jurisdiction under Part VIII of the Mental Health Act 1959;

1959 c. 72.

“statutory deposits” means sums of money deposited as mentioned in section 14(2) of this Act;

“statutory deposit regulations” means regulations made under any of the enactments mentioned in section 14(5) of this Act, rules made under section 64 of the Tramways Act 1870, or any provision included in an order under the Light Railways Act 1896 by virtue of section 11(k) thereof;

1870 c. 78.

1896 c. 48.

“the Supreme Court” means the Supreme Court of Judicature in England.

PART II

MISCELLANEOUS AMENDMENTS OF LAW RELATING
TO ENGLAND AND WALES

Control by
court, in
certain cases,
of money
recovered
under Fatal
Accidents
Acts.

19.—(1) Where, in any proceedings instituted in Her Majesty's High Court of Justice in England, a county court in England or Wales or the Mayor's and City of London Court,—

- (a) money is, or has been, recovered by or on behalf of, or adjudged or ordered or agreed to be paid to, or for the benefit of, a widow in satisfaction of a claim made by her or on her behalf under the Fatal Accidents Acts 1846 to 1959 ; or
- (b) money paid into court is, or has been, accepted by or on behalf of a widow in satisfaction of such a claim as is mentioned in paragraph (a) above ;

then, if the proceedings were for the benefit also of a person who, when the money is or was recovered, or adjudged or ordered or agreed to be paid, or accepted, is or was an infant, the money shall, so long as he remains an infant, be subject to be dealt with in like manner as money recovered in proceedings brought by an infant is subject to be dealt with.

(2) Where money that has been recovered, or adjudged or ordered or agreed to be paid, as mentioned in subsection (1)(a) above, or has, after payment into court, been accepted as mentioned in subsection (1)(b) above, is in court at the commencement of this Act, then if it is not subject to be dealt with under that subsection and the person entitled thereto is not under disability it shall be paid out to that person upon an application's being made in that behalf to the court.

(3) In this section " widow ", in relation to a claim, means the widow of the person whose death gave rise to the claim.

Increase
of amount
determining
county court
jurisdiction
to make
administration
orders,
restriction on
presentation
of bankruptcy
petitions
and minor
amendments
about such
orders.

20.—(1) In section 148(1) of the County Courts Act 1959 (which authorises a county court to make an order, hereafter in this section referred to as an " administration order ", for the administration of the estate of a debtor who is unable to pay the amount of a judgment against him in that court and alleges that his whole indebtedness amounts to a sum not exceeding £50) for the words " fifty pounds " there shall be substituted the words " three hundred pounds " ; and accordingly in section 148(3) (effect on administration order of its being found that the total amount of debts exceeds £50) the like substitution shall be made.

(2) Her Majesty may by Order in Council vary the said section 148(1) and 148(3) by substituting, for the references therein to £300, references to such greater sum as may be specified in the Order.

(3) Before an administration order is made by a court, the registrar of the court shall, in accordance with rules made under section 156 of the County Courts Act 1959, send to every

PART II

person whose name the debtor has notified to the appropriate county court as being a creditor of his notice that that person's name has been so notified; and so long as the order is in force, a creditor whose name is included in the schedule to the order shall not, without the leave of that court, be entitled to present, or join in, a bankruptcy petition against the debtor unless—

- (a) his name was so notified; and
- (b) the debt by virtue of which he presents, or joins in, the petition exceeds £100; and
- (c) the notice given to the creditor by the registrar in accordance with this subsection was received by the creditor within twenty-eight days immediately preceding the day on which the petition is presented.

(4) In section 150 of the County Courts Act 1959 (which, 1959 c. 22. when an administration order is made, bars a creditor from remedies in respect of a debt which has been notified to a county court or is scheduled to the order, and requires a stay of proceedings in a county court or other inferior court in respect of such a debt)—

- (a) the requirement to stay proceedings shall not operate as a requirement that a county court in which proceedings in bankruptcy against the debtor are pending shall stay those proceedings; and
- (b) the reference to notification to a county court shall be construed as a reference to notification to the appropriate county court.

(5) In section 149(a) of the County Courts Act 1959, the requirement that notice of an administration order shall be sent to every creditor notified by the debtor shall be construed as a requirement that notice shall be sent to every person whose name a debtor has notified to the appropriate county court as being a creditor of his.

(6) In this section any reference to notification to the appropriate county court shall, in relation to an administration order, be construed as a reference to the giving, before the making of the order, of notice, in accordance with rules made under the said section 156, to the court which, at the time when the notification is given, has the power to make the order.

(7) The power conferred by subsection (2) above to make an Order in Council shall include power to vary the Order; and an Order in Council under the said subsection (2) shall be subject to annulment in pursuance of a resolution of either House of Parliament.

21. The making, after the commencement of this Act, of an application to a county court, in accordance with rules made under section 156 of the County Courts Act 1959, for an order under section 148(1) of that Act shall be treated, for the purposes of the Bankruptcy Act 1914, as an act of bankruptcy. 1914 c. 59.

PART II**Execution.**

1894 c. 71.

(56 & 57 Vict.)

22.—(1) Section 26(1) of the Sale of Goods Act 1893 (which provides that a writ of execution against goods and chattels shall bind the property therein of the execution debtor as from the time when it is delivered to the sheriff, but that it shall not prejudice the title to the goods acquired by a person in good faith and for valuable consideration unless at the time when he acquired his title he had notice that the writ, or any other writ by virtue of which the goods of the execution debtor might be seized or attached, had been delivered to, and remained unexecuted in the hands of, the sheriff) shall, in the case of,—

1959 c. 22.

(a) a warrant of execution which is issued after the commencement of this Act from a county court against the goods and chattels of a person and sent to the registrar of another county court for execution under the provisions of section 138 of the County Courts Act 1959;

(b) an execution which is issued after the commencement of this Act by a local court (as defined by section 140(3) of the said Act of 1959) against the goods and chattels of a person and sent to a county court to be enforced under that section;

have effect as if, for references to the time when the writ is delivered to the sheriff, there were substituted references to the time when it is received by the registrar of the court through which it is to be enforced, and the reference to a writ's having been delivered to, and remaining unexecuted in the hands of, the sheriff shall be construed accordingly.

(2) References in the said section 26 to the goods of the execution debtor shall, for the purposes of the application of that section to England and Wales, include references to anything else of his that may lawfully be seized in execution.

(3) Where a claim is made to, or in respect of, any goods seized in execution under process of a county court but the claimant does not comply with the requirements of section 135(1) of the County Courts Act 1959 as to making a deposit with, or giving security to, the bailiff, the goods shall (notwithstanding subsection (3) of that section) not be sold if the registrar decides that, in all the circumstances, the decision of the judge on the claim ought to be awaited.

(4) Section 138(3) of the County Courts Act 1959 (which provides that, where a warrant of execution is sent by the registrar of one county court to the registrar of another county court for execution under the provisions of that section, the judge of the court to which the warrant is sent shall have the same powers of staying the execution as has the judge of the court from which the warrant is sent) shall have effect with the omission of the words "the judge of" (in both places where those words occur).

23.—(1) Where a lessor is proceeding by action in a county court in England or Wales to enforce against a lessee a right of re-entry or forfeiture in respect of any land for non-payment of rent, and the court by order made in pursuance of section 191(1)(b) of the County Courts Act 1959 orders possession of the land to be given to the lessor at the expiration of a period fixed by the court unless within that period the lessee pays into court all the rent in arrear and the costs of the action, the court may extend that period at any time before possession of the land is recovered in pursuance of the order.

PART II
Power of county court to extend period for giving possession of land in proceedings for enforcement of right of re-entry or forfeiture.
1959 c. 22.

(2) Where, under the foregoing subsection, a court extends a period at a time when that period has expired and a warrant has been issued for the possession of the land, the court shall suspend the warrant for the period of the extension and, if, before the expiration of the last-mentioned period, the lessee pays into court all the rent in arrear and the costs of the action, shall cancel the warrant.

(3) The extension under subsection (1) above of a period fixed by a court shall not be treated as relief from which the lessee, if he fails within that period to pay into court all the rent in arrear and the costs of the action, is barred by virtue of section 191(1)(c) of the County Courts Act 1959.

(4) Where, under subsection (1) above, a court extends a period, any reference in the said section 191(1)(c) (which, as well as barring a lessor from relief as mentioned in the last foregoing subsection, provides that if, within the period specified in the order, the lessee pays into court the rent in arrear and costs he shall continue to hold the land) to the period specified in the order shall be construed as reference to that period as so extended.

24.—(1) In addition to persons otherwise qualified—

(a) a registrar of the Chancery Division of the High Court, and a district registrar of that Court, shall be qualified to be appointed a master of the Chancery Division of that Court;

(b) a district registrar of the High Court, and a registrar of a district for which a court is to be held under section 2 of the County Courts Act 1959, shall be qualified to be appointed a master of the Supreme Court (Taxing Office).

Extension of descriptions of persons qualified for appointment to offices of Master, Chancery Division and Master, Taxing Office.

(2) In this section "the High Court" means Her Majesty's High Court of Justice in England and "the Supreme Court" means the Supreme Court of Judicature in England.

25.—(1) Section 128 of the Supreme Court of Judicature (Consolidation) Act 1925 (which relates to the pensions of certain officers) shall, in its application to the retirement of a person, after the commencement of this Act, from the office of Lord Chancellor's Legal Visitor, have effect as if, in subsection (1)(c)

Amelioration of conditions qualifying Lord Chancellor's Legal Visitor for pension.
1925 c. 49.

PART II

thereof (which prohibits the grant of a superannuation allowance to an officer under the age of seventy-two years unless he retires upon a medical certificate or has served fifteen years), for the words "fifteen years", there were substituted the words "ten years".

1950 c. 11.

(14&15Geo.6.)

(2) Any increase attributable to the foregoing subsection in the sums which, under section 118(2) of the said Act of 1925 or section 25(2) of the Administration of Justice (Pensions) Act 1950, are payable out of moneys provided by Parliament shall be paid out of moneys so provided.

District
probate
registry orders
to be subject
to negative,
instead of
affirmative,
resolution.
1925 c. 49.

26. The proviso to section 108(3) of the Supreme Court of Judicature (Consolidation) Act 1925 (which precludes the making, by the President of the Probate, Divorce and Admiralty Division, of an order under that subsection modifying or varying the provisions of Schedule 2 to that Act with respect to district probate registries unless a draft of the order has been approved by a resolution of each House of Parliament) shall cease to have effect; but section 212 of that Act (annulment in pursuance of a resolution of either House of Parliament of certain instruments made under the Act) shall apply to such an order as if it were a regulation made under that Act and by that Act required to be laid before Parliament.

Amendment
of section 8
of
Prosecution
of Offences
Act 1879.
1879 c. 22.

27. A statutory instrument by which the power to make, vary, rescind or add to regulations conferred on the Attorney General by section 8 of the Prosecution of Offences Act 1879 is exercised shall be subject to annulment in pursuance of a resolution of either House of Parliament, and for the requirement that the approval of the Lord Chancellor and a Secretary of State shall be requisite to the exercise of that power there shall be substituted a requirement that the exercise thereof shall be subject to the concurrence of a Secretary of State.

Commutation
of benefits
under section
10 of Courts
of Justice
Concentration
(Site) Act
1865.
1865 c. 49.

28.—(1) If a person for the time being entitled to a benefit conferred by section 10 of the Courts of Justice Concentration (Site) Act 1865 on the incumbent of a benefice by way of annuity concurs in the making between the Minister of Public Building and Works and the Church Commissioners of an agreement for the commutation of that benefit into a capital sum specified in the agreement to be paid by that Minister to those Commissioners then, upon payment of that sum, the liability of that Minister under that section to the incumbent of that benefice shall determine.

1951 No. 5.

(2) A sum paid in pursuance of such an agreement as aforesaid with reference to a benefice shall be deemed, for the purposes of section 4 of the Benefices (Stabilization of Incomes) Measure 1951 (which provides for charging the general fund

of the Church Commissioners with the payment to a benefice of interest on the sum appropriated thereto under that section in consequence of money's being received by them on behalf of the benefice to be held as endowment capital otherwise than on special trusts), to have been received by the Church Commissioners on behalf of that benefice to be so held.

PART II

(3) Any sum required by the Minister of Public Building and Works to enable him to make a payment in pursuance of such an agreement as aforesaid shall be paid to him out of moneys provided by Parliament.

PART III

QUALIFICATION OF EX-SERVICE MEMBERS OF APPEAL TRIBUNALS
UNDER WAR PENSIONS (ADMINISTRATIVE PROVISIONS) ACT
1919

29. For sub-paragraph (ii) of paragraph 2 of the Schedule to the War Pensions (Administrative Provisions) Act 1919 (by virtue whereof one of the members of an appeal tribunal established under section 8 of that Act must be a disabled officer who retired or was demobilised from the forces during the 1914-18 war while suffering impairment or a disabled man who was similarly discharged or demobilised) there shall be substituted the following sub-paragraph:—

Amendment of War Pensions (Administrative Provisions) Act 1919.
1919 c. 53.

“(ii) a person who has served in Her Majesty's Forces”.

PART IV

PROVISIONS WITH RESPECT TO NORTHERN IRELAND

30. Her Majesty may by Order in Council direct that section 1(1) of this Act shall have effect as if the reference to moneys in the Supreme Court included references to moneys in the Supreme Court of Judicature of Northern Ireland and moneys which may be invested in pursuance of a general order made under section 118 of the Lunacy Regulation (Ireland) Act 1871 by the Lord Chief Justice of Northern Ireland; and an Order in Council under this section may make such modifications of the remaining provisions of the said section 1 as appear to Her Majesty to be requisite or expedient in consequence of the giving of the direction.

Power of Her Majesty to extend scope of section 1 of this Act so as to include certain Northern Irish moneys.
1871 c. 22.

31. The limitation imposed by section 4(1)(14) of the Government of Ireland Act 1920 (which precludes the Parliament of Northern Ireland from making laws in respect of any matter declared by that Act to be a reserved matter) shall not be construed so as to prevent that Parliament from including in a law made by it a provision which would correspond to section 19 of this Act if, for the references to the courts therein mentioned and the Fatal Accidents Acts 1846 to 1959, there were substituted respectively references to Her Majesty's High Court of Justice in Northern Ireland and any similar enactments for the time being in force in Northern Ireland and if subsection (2) were omitted.

Power of Parliament of Northern Ireland to enact provisions similar to those of section 19 of this Act.
1920 c. 67.

PART IV
 Transcript of
 shorthand
 notes of trial
 on indictment.
 1930 c. 45.

32. In section 15(2) of the Criminal Appeal (Northern Ireland) Act 1930 (under which the Minister of Home Affairs for Northern Ireland is entitled to have a transcript of the shorthand notes taken at a trial on indictment in Northern Ireland made and furnished to him for his use), the words "for his use" shall be omitted.

Repeal of
 section 116 of
 Probates and
 Letters of
 Administration
 Act (Ireland)
 1857.
 1857 c. 79.

33. Section 116 of the Probates and Letters of Administration Act (Ireland) 1857 (which requires the Treasury to prepare, and to present to Parliament, an annual return of fees and moneys levied, and salaries, expenses and superannuations, &c., paid, under that Act) shall cease to have effect.

PART V

SUPPLEMENTAL

Cesser of
 obsolete, &c.,
 enactments.

34.—(1) Whereas the enactments specified in columns 1 and 2 of Schedule 2 to this Act have, to the extent specified in column 3 of that Schedule become obsolete, spent or unnecessary or been superseded by other enactments:

Now, therefore, the enactments so specified shall cease to have effect to the said extent.

1845 c. 18.

(2) Any reference in the said Schedule 2 to a provision of the Lands Clauses Consolidation Act 1845 shall be taken to refer as well to that provision as incorporated in any Act or other instrument as to it as originally enacted; and, so far as regards that Act, this section shall not extend to Northern Ireland.

Construction
 of references to
 enactments.

35. References in this Act to any enactment shall, except in so far as the context otherwise requires, be construed as references to that enactment as amended by or under any subsequent enactment, including this Act.

Short title,
 commence-
 ment and
 repeal.

36.—(1) This Act may be cited as the Administration of Justice Act 1965.

(2) This Act shall come into force on such day as the Lord Chancellor may by order made by statutory instrument appoint.

(3) Different days may be appointed by order under this section for different purposes of this Act; and any reference in any provision of this Act to the commencement of this Act shall, unless otherwise provided by any such order, be construed as a reference to the day on which that provision comes into operation.

(4) The enactments specified in columns 1 and 2 of Schedule 3 to this Act are hereby repealed to the extent specified in column 3 of that Schedule.

SCHEDULES

SCHEDULE 1

Sections 17 & 18

AMENDMENTS OF ENACTMENTS FOR SECURING CONFORMITY
WITH PART I OF THIS ACT

<i>Enactment</i>	<i>Amendment</i>
The Crown Debts Act 1801 (41 Geo. 3. (U.K.) c. 90).	In section 6, for the words from "into the Bank of England" onwards there shall be substituted the words "into the Supreme Court".
The Glebe Exchange Act 1815 (55 Geo. 3. c. 147).	In section 12, for the words from "into the Bank of England" to "or hereditaments" (where next occurring) there shall be substituted the words "into the Supreme Court", and for the words from "and in the meantime" to "kingdom, and", there shall be substituted the words "and if, before it is so applied or laid out, it is dealt with under section 6 of the Administration of Justice Act 1965".
The Chelsea and Kilmainham Hospitals Act 1826 (7 Geo. 4. c. 16).	In section 44, for the words "into the Bank of England" there shall be substituted the words "into the Supreme Court". In section 46, for the words from "into the Bank of England" to "Middlesex" there shall be substituted the words "into the Supreme Court", and for the words from "and in the meantime" (where first occurring) to "bank annuities" (where last occurring) there shall be substituted the words "and if, before the said money is so applied, it is dealt with under section 6 of the Administration of Justice Act 1965, the annual proceeds thereof". In section 47, for the words from "into the bank" to "aforesaid" there shall be substituted the words "into the Supreme Court". In section 49, for the words from "into the Bank" to "Chancery" there shall be substituted the words "into the Supreme Court", and for the words "bank annuities" (wherever occurring) there shall be substituted the words "securities". In section 50, for the words "said Court of Chancery" there shall be substituted the words "Supreme Court". In section 51, for the words "the Bank of England" there shall be substituted the words "the Supreme Court".

SCH. 1

*Enactment**Amendment*

The Clergy Residence
Act 1826 (7 Geo. 4.
c. 66).

In section 3, for the words from "into the Bank of England" to "or lands" where next occurring, there shall be substituted the words "into the Supreme Court", for the words "the said Court of Chancery of England or Ireland" there shall be substituted the words "the court", and for the words from "and in the meantime" to "Ireland, and" there shall be substituted the words "and if, before it is so applied or laid out, it is dealt with under section 6 of the Administration of Justice Act 1965".

The Court Funds Act
1829 (10 Geo. 4. c. 13).

After the word "Exchequer" (where first occurring) there shall be inserted the words "or into the Supreme Court", and the words "into the Bank of England" (where secondly occurring) shall be omitted.

The Ecclesiastical Houses
of Residence Act 1842
(5 & 6 Vict. c. 26).

In section 12, for the words from "into the Bank of England" to "enfranchised" (where next occurring) there shall be substituted the words "into the Supreme Court", for the words from "and in the meantime" (where first occurring) to "aforesaid" there shall be substituted the words "and if, before it is so applied or so laid out and invested, it is dealt with under section 6 of the Administration of Justice Act 1965", and the words from "and the certificate" to "certified to be received" shall be omitted.

The Defence Act 1842
(5 & 6 Vict. c. 94).

Section 26 shall, in its application to Her Majesty's High Court of Justice in England and Her Majesty's High Court of Justice in Northern Ireland, have effect with omission of the words "or for placing out such part thereof as shall be principal in the public funds, or upon government or real securities".

Section 30 shall, as regards money paid into the Supreme Court, have effect with the substitution, for the words "any bank annuities", of the words "any investments", for the words "any such bank annuities", of the words "any such investments or money" and, for the words "the bank annuities to be purchased with such money, and also the capital of such bank annuities", of the words "the money or the investments to be purchased therewith, and also the investments themselves".

Enactment

The Lands Clauses Consolidation Act 1845
(8 & 9 Vict. c. 18).

Amendment

SCH. 1

Section 69 shall, in the case of purchase money or compensation payable in respect of, or of an interest in, or for damage to, lands in England or Wales, have effect with the substitution, for the words from "be paid into the Bank" to "the said courts", of the words "be paid into the Supreme Court".

Section 70 shall, in the case of money paid into the Supreme Court, have effect with the substitution, for the words from "and until the money" to "annual proceeds thereof paid", of the words "and if, before it is so applied, it is dealt with under section 6 of the Administration of Justice Act 1965, the annual proceeds thereof shall be paid".

Section 71 shall, in the case of purchase money or compensation payable in respect of, or of an interest in, or for damage to, lands in England or Wales, have effect with the substitution, for the words "be paid into the Bank", of the words "be paid into the Supreme Court" and, for the words "money paid into the Bank", of the words "money paid into the Supreme Court".

Section 73 shall, in the case of money payable in respect of the taking, using or interfering with lands in England or Wales, have effect with the substitution, for the words "be paid into the Bank", of the words "be paid into the Supreme Court" and, for the words "so paid into the Bank", of the words "paid into the Supreme Court".

In section 74, after the word "into" there shall be inserted the words "the Supreme Court or".

In section 75, before the word "deposit" (where it first occurs) there shall be inserted the words "payment into court or", before the word "deposit" (where it secondly occurs) there shall be inserted the words "payment or", and before the word "deposited" there shall be inserted the words "paid or".

Section 76 shall, in the case of, or of an interest in, lands in England or Wales that have, or has, been purchased or taken, have effect with the substitution, for the words from "to deposit the purchase money" onwards, of the words

SCH. 1

Enactment

The Lands Clauses Consolidation Act 1845 (8 & 9 Vict. c. 18)—
cont.

Amendment

“to pay into the Supreme Court the purchase money or compensation payable in respect of such lands”.

In section 77, for the words “such deposit” (wherever they occur) there shall be substituted the words “such payment or deposit”, and for the word “deposited” there shall be substituted the words “paid or deposited”.

Section 78 shall, in the case of purchase money or compensation payable in respect of, or of an interest in, lands in England or Wales, have effect as if, after the word “so” (in both places where it occurs), there were inserted the words “paid or”, and as if, for the words from “order such money” to “thereof” (where it last occurs), there were substituted the words “order distribution of the money according to the respective estates, titles or interests of the parties making claim to such money or lands, or any part thereof, and if, before the money is distributed, it is dealt with under section 6 of the Administration of Justice Act 1965 payment likewise of the dividends thereof”.

In section 79, for the words “the money so deposited, and to the dividends or interest of the annuities or securities purchased therewith” there shall be substituted the words “the money so paid or deposited, and to the interest or dividends of it or of the securities purchased therewith”.

In section 80, after the word “monies” (where it first occurs) there shall be inserted the words “paid into the Supreme Court or”, after the word “so” there shall be inserted the words “paid or”, the words “in government or real securities” shall be omitted and for the words from “and interest” to “or of the” there shall be substituted the words “of the monies, and for the payment out of court of the principal thereof or of any”.

Section 84 shall, in the case of lands in England or Wales, have effect with the substitution, for the words “deposited in the Bank”, of the words “paid into the Supreme Court”.

Enactment

The Lands Clauses Consolidation Act 1845 (8 & 9 Vict. c. 18)—
cont.

Amendment

SCH. 1

Section 85 shall, in the case of lands in England or Wales have effect as if, for the words "to deposit in the Bank", the words "for deposit in the Bank", the words "deposited in the Bank" and the words "such deposit", there were respectively substituted the words "to pay into the Supreme Court", the words "for payment into the Supreme Court", the words "paid into the Supreme Court" and the words "such payment".

The Act shall, in its application to England and Wales, have effect with the substitution for sections 86, 87 and 88 of the following section:—

"86. Money paid under section 85 of this Act into the Supreme Court shall remain there by way of security to the parties whose lands shall so have been entered upon for the performance of the condition of the bond to be given by the promoters of the undertaking, as hereinbefore mentioned, and, if dealt with under section 6 of the Administration of Justice Act 1965 shall be accumulated; and upon the condition of such bond being fully performed the High Court may, on the application of the promoters, order it, or the proceeds of the securities in which it has been invested, together with the accumulation thereof, to be paid to the promoters of the undertaking, or if such condition shall not be fully performed it shall be lawful for the said Court to order the same to be applied, in such manner as it shall think fit, for the benefit of the parties for whose security the same shall have been paid".

Section 99 shall, in the case of lands in England or Wales, have effect with the substitution, for the words "and upon payment or deposit in the Bank of the compensation so determined", of the words "and upon payment of the compensation so determined either to the persons entitled thereto or into the Supreme Court".

Section 100 shall, in the case of lands in England or Wales, have effect with the substitution, for the words "on deposit thereof in the Bank", of the words

SCH. 1

Enactment

The Lands Clauses Consolidation Act 1845
(8 & 9 Vict. c. 18)—
cont.

Amendment

“on payment thereof into the Supreme Court”, with the substitution, for the words “deposited as aforesaid”, of the words “paid into the Supreme Court as aforesaid”, and with the substitution, for the words from “by payment” onwards, of the words “by payment, as hereinafter provided, of compensation for the same either to the persons entitled thereto or into the Supreme Court”.

Section 107 shall, in the case of lands in England or Wales over which commonable or other rights subsist, have effect with the substitution, for the words “deposit in the Bank in the manner provided in the like case”, of the words “payment into the Supreme Court” with the omission of the words “or deposited”, and with the substitution, for the words “so deposited”, of the words “so paid into the Supreme Court”.

Section 109 shall, in the case of lands in England or Wales subject to a mortgage, have effect with the substitution, for the words “to deposit in the bank, in the manner provided by this Act in like cases”, of the words “to pay into the Supreme Court”.

Section 111 shall, in the case of lands in England or Wales subject to a mortgage, have effect with the substitution, for the words from “to deposit” to “every such payment or deposit”, of the words “to pay into the Supreme Court the amount of such value or compensation; and the making of payment to the mortgagee or into the Supreme Court”, and, for the words “by such payment or deposit”, of the words “by payment to the mortgagee or into the Supreme Court”.

Section 113 shall, in the case of lands in England or Wales subject to a mortgage, have effect with the substitution, for the words from “to pay the amount” to “such payment or deposit”, of the words “to pay into the Supreme Court the amount of such value or compensation; and the making of payment to the mortgagee or into the Supreme Court”.

Section 117 shall, in the case of lands in England or Wales charged with payments or incumbrances not otherwise provided

*Enactment**Amendment*

SCH. 1

The Lands Clauses Consolidation Act 1845 (8 & 9 Vict. c. 18)—
cont.

for in the Act, have effect with the substitution, for the words from “to deposit” to “like cases”, of the words “to pay into the Supreme Court the amount of the compensation”.

The Inclosure Act 1845 (8 & 9 Vict. c. 118).

In section 138, for the words from “be paid” to “ex parte the commissioners” there shall be substituted the words “be paid into the Supreme Court”.

Section 139 shall be omitted.

In section 140, for the words from “be paid” to “his account as aforesaid” there shall be substituted the words “be paid into the Supreme Court”, and for the words from “and the money so paid to such trustees” to the end there shall be substituted the words “and the money so paid to such trustees shall be by them applied in like manner as is hereinbefore directed with respect to money paid into the Supreme Court, but without obtaining or being required to obtain any order of the court touching the application thereof, and the dividends and produce arising from the money before it is so applied shall from time to time be paid to the parties aforesaid”.

The Tithe Act 1846 (9 & 10 Vict. c. 73).

In section 9, for the words “be paid into the Bank of England” to “until the same be applied” there shall be substituted the words “be paid into the Supreme Court in order that it may be applied”, for the words from “and until the money” to “and the dividends thereof paid” there shall be substituted the words “and if, before it is so applied, it is dealt with under section 6 of the Administration of Justice Act 1965, the dividends thereof shall be paid”, and for the words “to be paid for redemption into the Bank of England in the name and with the privity of the said accountant general” there shall be substituted the words “to be paid into the Supreme Court”.

The Queen’s Remembrancer Act 1859 (22 & 23 Vict. c. 21).

In section 8, for the words from “be paid into the Bank of England” to “his name as aforesaid” there shall be substituted the words “be paid into the Supreme Court; and upon the filing there of a certificate of the Accountant General of the Supreme Court of the payment”.

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*Enactment**Amendment*

The Tithe Act 1860 (23
& 24 Vict. c. 93).

In section 37, for the words "into the Bank of England in the name of the Accountant General" there shall be substituted the words "into the Supreme Court".

The Defence Act 1860
(23 & 24 Vict. c. 112).

In sections 21 and 22, for the words "into the Bank of England or Ireland" there shall be substituted the words "into the Supreme Court or into the Bank of Ireland".

In section 23, for the words from "Bank of England" to "Court of Chancery" (where first occurring) there shall be substituted the words "Supreme Court".

The Telegraph Act 1869
(32 & 33 Vict. c. 73).

In section 11, for the words "to deposit" there shall be substituted the words "to pay or deposit", the words "in the bank" shall be omitted, and for the word "deposited" (in each place where it occurs) there shall be substituted the words "paid or deposited".

The Tramways Act 1870
(33 & 34 Vict. c. 78).

Section 12 shall, except in the case of a tramway that will be wholly situate in Scotland, have effect with the substitution, for the references to the payment of a prescribed sum of money into, and the deposit of a security of the prescribed nature in, the prescribed bank, of references respectively to the deposit of such a sum of money with the Accountant General and the deposit of a security of such a nature with him, and shall, in the said excepted case, have effect as if the first-mentioned references included references respectively to the deposit of such a sum of money with him and the deposit of a security of such a nature with him.

In section 64(2), the reference to the investment of money paid by way of deposit shall, in the case of money deposited with the Accountant General, be construed as referring to the laying out thereof at interest, the investment thereof by the Accountant General in securities or the transfer thereof to one of the funds established by common investment schemes.

The Consolidated Fund
(Permanent Charges
Redemption) Act 1873
(36 & 37 Vict. c. 57).

Section 3 shall, in its application to England and Wales, have effect with the substitution, for the words from "paid into the Court of Chancery" to "1872", of the words "paid into the Supreme Court" and with the substitution, for the words

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The Consolidated Fund
(Permanent Charges
Redemption) Act 1873
(36 & 37 Vict. c. 57).
—*cont.*

The Life Assurance Com-
panies (Payment into
Court) Act 1896 (59
& 60 Vict. c. 8).

The Light Railways Act
1896 (59 & 60 Vict.
c. 48).

The Deeds of Arrange-
ment Act, 1914 (4 & 5
Geo. 5. c. 47).

The Industrial Assurance
Act 1923 (13 & 14
Geo. 5. c. 8).

The Mines (Working
Facilities and Support)
Act 1923 (13 & 14
Geo. 5. c. 20).

The Settled Land Act
1925 (15 & 16 Geo. 5.
c. 18).

“the said Court”, of the words “the
High Court”.

In section 4, for the words “paid to the
Court of Chancery” there shall be
substituted the words “paid into court”.

The Act shall, in its application to England
and Wales, have effect with the substitu-
tion, for references to the High Court, of
references to the Supreme Court.

For section 11(k) there shall be substituted
the following:—

“(k) in the case of a new company,
requiring the company to make a
deposit with the Accountant
General of the Supreme Court,
and providing for the time of
making and the application of the
deposit and for its being laid out at
interest, invested by the Accoun-
tant General in securities or trans-
ferred to one of the funds
established by schemes made under
section 1 of the Administration
of Justice Act 1965”.

In section 16, for the words “paid into
court” there shall be substituted the
words “paid into the Supreme Court or,
if a county court has jurisdiction in the
matter, into that court”.

In section 7(1), the second reference to the
Insurance Companies Act 1958 shall be 1958 c. 72.
construed as referring to that Act as
amended by this Act.

In section 9(3), for the words “paid into
court” there shall be substituted the
words “paid into the Supreme Court”.

After subsection (1) of section 117, there
shall be inserted the following sub-
section:—

“(1A) Any reference in this Act to
money, securities or proceeds of sale
being paid or transferred into court
shall be construed as referring to the
money, securities or proceeds being
paid or transferred into the Supreme
Court or any other court that has
jurisdiction, and any reference in this
Act to the court, in a context referring
to the investment or application of
money, securities or proceeds of sale
paid or transferred into court, shall be

SCH. 1

Enactment

The Settled Land Act
1925 (15 & 16 Geo. 5.
c. 18).—*cont.*

The Trustee Act 1925
(15 & 16 Geo. 5. c. 19).

The Law of Property
Act 1925 (15 & 16
Geo. 5. c. 20).

Amendment

construed, in the case of money, securities or proceeds paid or transferred into the Supreme Court, as referring to the High Court, and, in the case of money, securities or proceeds paid or transferred into another court, as referring to that other court".

Paragraph (8) of section 68 and, in paragraph (13) of that section, the words from "and so far as relates" to "Supreme Court" shall be omitted, and at the end of that section there shall be inserted the following subsection:—

"(2) Any reference in this Act to paying money or securities into court shall be construed as referring to paying the money or transferring or depositing the securities into or in the Supreme Court or into or in any other court that has jurisdiction, and any reference in this Act to payment of money or securities into court shall be construed—

(a) with reference to an order of the High Court, as referring to payment of the money or transfer or deposit of the securities into or in the Supreme Court; and

(b) with reference to an order of any other court, as referring to payment of the money or transfer or deposit of the securities into or in that court".

After subsection (1) of section 205 there shall be inserted the following subsection:—

"(1A) Any reference in this Act to money being paid into court shall be construed as referring to the money being paid into the Supreme Court or any other court that has jurisdiction, and any reference in this Act to the court, in a context referring to the investment or application of money paid into court, shall be construed, in the case of money paid into the Supreme Court, as referring to the High Court, and in the case of money paid into another court, as referring to that other court".

*Enactment**Amendment*

SCH. I

The Mines (Working
Facilities and Support)
Act 1925 (15 & 16
Geo. 5. c. 91).

Section 1 shall have effect with the substitution, in subsection (1), for the words "order the payment into Court" (in both places where they occur), of the words "order the payment into the Supreme Court" and with the substitution, for subsection (3), of the following subsection:—

"(3) In the application of the principal Act and of this Act to Scotland, references to payment into the Supreme Court shall be construed as references to consignment in the Court of Session".

The Mining Industry Act
1926 (16 & 17 Geo. 5.
c. 28).

In section 24(3), for the words from "and may order" onwards there shall be substituted the words "and may order the payment into the Supreme Court (or, in Scotland, the consignment) of the whole or any part of any sum so required to be paid by way of such security".

The War Damage Act
1943 (6 & 7 Geo. 6.
c. 21).

Section 33(1) shall, in its application to England and Wales, have effect as if, for the words from "make payment thereof" onwards, there were substituted the words "make payment thereof into the Supreme Court or, if the amount thereof does not exceed five hundred pounds, into a county court"; and for subsection (2) of that section there shall be substituted the following:—

"(2) In its application to Scotland, the foregoing subsection shall have effect with the substitution, for the words from "they may make" onwards, of the words "they may consign the sum subject to the orders of the Court of Session or, if the sum does not exceed five hundred pounds, subject to the orders of the sheriff court".

The Exchange Control
Act 1947 (10 & 11
Geo. 6. c. 14).

In the application of Schedule 4 to England and Wales, for the words "High Court" in paragraph 3, there shall be substituted the words "Supreme Court" and the reference to the court in sub-paragraph (a) of that paragraph shall, as regards rules to be made as respects the Supreme

SCH. 1

*Enactment**Amendment*

The Exchange Control
Act 1947 (10 & 11
Geo. 6. c. 14).—*cont.*

Court, be construed as referring to that Court, as regards rules to be made as respects county courts, be construed as referring to such county court as may be prescribed by the rules, and, as regards rules to be made as respects any other court, be construed as referring to that court.

The Civil Aviation Act
1949 (12, 13 & 14 Geo.
6. c. 67).

In Schedule 6, in paragraph 7(2), for the words "made by the Board of Trade under section 2 of the Assurance Companies Act 1909" there shall be substituted the words "made, or having effect as if made, under section 20 of the Insurance Companies Act 1958 as amended by the Administration of Justice Act 1965", and for the words "as the Board of Trade might have made under the said section two if the Assurance Companies Act 1946. had not passed", there shall be substituted the words "as might be made under the said section 20, as so amended, by the Board of Trade had subsection (2) thereof been omitted".

1909 c. 49.

1958 c. 72.

1946 c. 28.

The Prevention of Fraud
(Investments) Act 1958
(6 & 7 Eliz. 2. c. 45).

For section 4(3), there shall be substituted the following:—

"(3) The Board of Trade may make such regulations as appear to them to be necessary with respect to the laying out at interest, the investment by the Accountant General in securities or the transfer to one of the funds established by schemes made under section 1 of the Administration of Justice Act 1965 of sums deposited under this section, the deposit of securities in lieu of money, the payment to the depositor of the interest or dividends from time to time accruing due on a deposit under this section or on any securities in which such a deposit is for the time being invested, or on any securities deposited under this section in lieu of money, and the realisation of such securities as aforesaid in specified circumstances".

The Insurance Com-
panies Act 1958 (6 & 7
Eliz. 2. c. 72).

For section 19(1) there shall be substituted the following:—

"(1) The interest or dividends accruing due on a sum deposited with the Accountant General of the Supreme

<i>Enactment</i>	<i>Amendment</i>	SCH. 1
The Insurance Companies Act 1958 (6 & 7 Eliz. 2. c. 72).— <i>cont.</i>	Court by any company under section 2 of the Assurance Companies Act 1909 or paragraph 1 of Schedule 2 to this Act, on securities in which a sum so deposited is for the time being invested or on securities so deposited shall be paid to the company ”.	1909 c. 49.
For section 20(1) there shall be substituted the following:—		
“ (1) Regulations may be made with respect to applications for warrants, to the payment of deposits, the laying out thereof at interest or the investment thereof by the Accountant General in securities or the transfer thereof to one of the funds established by schemes made under section 1 of the Administration of Justice Act 1965, and other dealing therewith, to the deposit of securities in lieu of money, to the payment of interest or dividends from time to time accruing due on deposits or any securities in which they are for the time being invested, or on any securities deposited in lieu of money, and to the withdrawal and transfer of deposits ”.		
The Mental Health Act 1959 (7 & 8 Eliz. 2. c. 72).	In section 103(1)(a), for the words “ the payment into or lodgment in court ” there shall be substituted the words “ the payment into or lodgment in the Supreme Court ”.	
The Road Traffic Act 1960 (8 & 9 Eliz. 2. c. 16).	In section 210(2), the references to section 20 of the Insurance Companies Act 1958 shall be construed as referring to that section as amended by this Act.	

Section 34.

SCHEDULE 2

OBSOLETE, &C., ENACTMENTS CEASING TO HAVE EFFECT

Chapter	Title or Short Title	Extent to which Enactment is to cease to have Effect
31 Eliz. 1. c. 11.	The Forcible Entry Act 1588.	The words "cost ^e and " wherever occurring.
21 Jas. 1. c. 3.	The Statute of Monopolies.	In section 4, the words "and in double cost ^e ". Section 8.
16 & 17 Car. 2. c. 5.	The Execution Act 1664.	The whole Act.
2 Will. & Mary c. 5.	The Distress for Rent Act 1689.	In section 3, the words "and costs of suite". In section 4, the words "together with full costs of suite".
8 & 9 Will. 3. c. 20.	The Bank of England Act 1696.	Section 46.
4 & 5 Anne c. 3.	The Administration of Justice Act 1705.	The whole Act.
13 Anne c. 13.	The Presentation of Benefices Act 1713.	In section 4, the words from "Provided that " onwards.
24 Geo. 2. c. 40.	The Sale of Spirits Act 1750.	The whole Act.
25 Geo. 2. c. 36.	The Disorderly Houses Act 1751.	Sections 5 to 7.
10 Geo. 3. c. 50.	The Parliamentary Privilege Act 1770.	Section 5.
15 Geo. 3. c. 22.	An Act for vesting part of the garden of the society of Lincoln's Inn, in the county of Middlesex, in the accountant general of the court of chancery, and his successors, for ever, for the purpose of erecting thereon offices for the accountant general, and for the register of the said court.	The whole Act.
15 Geo. 3. c. 56.	An act for applying the funds provided for rebuilding the offices of the six clerks of the King's court of chancery, by an act, made in the fourteenth year of the reign of his present Majesty, intituled, An act for	The whole Act.

SCH. 2

Chapter	Title or Short Title	Extent to which Enactment is to cease to have Effect
15 Geo. 3. c. 56— <i>cont.</i>	rebuilding the office of the six clerks of the King's court of chancery, and for erecting offices for the register and accountant-general of the said court, for the better preserving the records, decrees, orders, and books of account kept in such offices; in building offices for the said six clerks in the garden of Lincoln's Inn, instead of rebuilding the present six clerks office in Chancery Lane; and for other purposes.	
19 Geo. 3. c. 70.	The Inferior Courts Act 1779.	The whole Act.
41 Geo. 3. (U.K.) c. 63.	The House of Commons (Clergy Disqualification) Act 1801.	In section 2, the words "with full costs of suit".
41 Geo. 3. (U.K.) c. 79.	The Public Notaries Act 1801.	In section 16, the words "with full costs of suit".
52 Geo. 3. c. 11.	The House of Commons (Offices) Act 1812.	In section 2, the words "the master of the rolls".
57 Geo. 3. c. 19.	The Seditious Meetings Act 1817.	In section 30, the words from "and the plaintiff" to "expences".
58 Geo. 3. c. 30.	The Costs Act 1818.	The whole Act.
58 Geo. 3. c. 70.	The Disorderly Houses Act 1818.	The whole Act.
7 & 8 Geo. 4. c. 71.	The Imprisonment for Debt Act 1827.	The whole Act.
9 Geo. 4. c. 66.	The Nautical Almanack Act 1828.	In section 2, the words "with costs of suit".
11 Geo. 4. & 1 Will. 4. c. 36.	The Contempt of Court Act 1830.	Section 18.
3 & 4 Will. 4. c. 42.	The Civil Procedure Act 1833.	The whole Act.
1 & 2 Vict. c. 74.	The Small Tenements Recovery Act 1838.	In section 6, the words "with costs of suit".
1 & 2 Vict. c. 110.	The Judgments Act 1838.	Section 22.

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Chapter	Title or Short Title	Extent to which Enactment is to cease to have Effect
5 & 6 Vict. c. 32.	The Fines and Recoveries Act 1842.	The whole Act.
5 & 6 Vict. c. 86.	The Exchequer Court Act 1842.	The whole Act.
6 & 7 Vict. c. 86.	The London Hackney Carriages Act 1843.	In section 47, the words from "and if a verdict" onwards.
7 & 8 Vict. c. 22.	The Gold and Silver Wares Act 1844.	In section 13, the words from "and if a verdict" onwards.
8 & 9 Vict. c. 18.	The Lands Clauses Consolidation Act 1845.	In section 11 the words "with costs of suit by action of debt". In section 66 the words "be enforced by attachment, or" and the words "with costs by action or suit". In section 70 the words "on the petition" so far as they require an application to be made by petition. In section 74 the words "on the petition" so far as they require an application to be made by petition. In section 78 the words "by petition" and the words "in a summary way as to such court shall seem fit". In section 83 the words "upon petition in a summary way" and the words from "or the same" to "other cases of costs". In section 89 the words "with costs, by action". In section 107 the words "by an order to be made upon petition". Section 126. In section 135 the words from "and if no such tender" onwards.

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Chapter	Title or Short Title	Extent to which Enactment is to cease to have Effect
8 & 9 Vict. c. 127.	The Small Debts Act 1845.	Section 22.
12 & 13 Vict. c. 45.	The Quarter Sessions Act 1849.	Section 11.
12 & 13 Vict. c. 109.	The Petty Bag Act 1849.	Sections 30, 31 and 45.
15 & 16 Vict. c. 76.	The Common Law Procedure Act 1852.	Sections 127, 213, 217, 219 and 220.
20 & 21 Vict. c. 43.	The Summary Jurisdiction Act 1857.	Section 11.
20 & 21 Vict. c. 60.	The Irish Bankrupt and Insolvent Act 1857.	Sections 68, 341 and 342 and Schedule (B).
20 & 21 Vict. c. 77.	The Court of Probate Act 1857.	Sections 116 and 117.
20 & 21 Vict. c. 79.	The Probates and Letters of Administration Act (Ireland) 1857.	In section 32, the words "all persons who at the commencement of this Act shall be acting as surrogates of any ecclesiastical court, and" and the word "other" (where first occurring).
20 & 21 Vict. c. 85.	The Matrimonial Causes Act 1857.	The whole Act.
22 Vict. c. 25.	The Convict Prisons Abroad Act 1859.	The whole Act.
23 & 24 Vict. c. 127.	The Solicitors Act 1860.	The whole Act.
24 & 25 Vict. c. 10.	The Admiralty Court Act 1861.	Section 16.
25 & 26 Vict. c. 38.	The Sale of Spirits Act 1862.	The whole Act.
27 & 28 Vict. c. 44.	The Matrimonial Causes Act 1864.	The whole Act.
27 & 28 Vict. c. 114.	The Improvement of Land Act 1864.	Section 22. In section 23, the words "and the mode in which such costs shall be settled or taxed", the words "in the dis-

SCH. 2

Chapter	Title or Short Title	Extent to which Enactment is to cease to have Effect
27 & 28 Vict. c. 114— <i>cont.</i>	The Improvement of Land Act 1864— <i>cont.</i>	creation of the Court or judge who shall hear such application" and the words "the said costs shall".
28 & 29 Vict. c. 48.	The Courts of Justice Building Act 1865.	Section 23.
28 & 29 Vict. c. 49.	The Courts of Justice Concentration (Site) Act 1865.	The whole Act except section 10.
29 & 30 Vict. c. 37.	The Hop (Prevention of Frauds) Act 1866.	In section 15, the words from "and any plaintiff" onwards.
30 & 31 Vict. c. 122.	The Courts of Law (Fees) Act 1867.	The whole Act.
34 & 35 Vict. c. 57.	The Courts of Justice (Additional Site) Act 1871.	The whole Act.
35 & 36 Vict. c. 86.	The Borough and Local Courts of Record Act 1872.	In the Schedule, paragraph 9.
36 & 37 Vict. c. 66.	The Supreme Court of Judicature Act 1873.	Section 46.
39 & 40 Vict. c. 28.	The Court of Admiralty (Ireland) Amendment Act 1876.	Section 13.
39 & 40 Vict. c. 59.	The Appellate Jurisdiction Act 1876.	In section 25, the words "or Ireland" and the words from "and the superior" to "Justice".
42 & 43 Vict. c. 22.	The Prosecution of Offences Act 1879.	In section 9, the words from "and Her Majesty's Solicitor-General" onwards.
47 & 48 Vict. c. 54.	The Yorkshire Registries Act 1884.	Section 36. In section 37, the words from the beginning to "have effect". In section 38, the words from "or after any agreement" to "into effect". In section 40, the words from the beginning to "under this Act". In section 49, the words from the beginning to "have effect".

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Chapter	Title or Short Title	Extent to which Enactment is to cease to have Effect
50 & 51 Vict. c. 6.	The Supreme Court of Judicature (Ireland) Act 1887.	Sections 1, 4 and 5.
54 & 55 Vict. c. 10.	The Middlesex Registry Act 1891.	The whole Act.
54 & 55 Vict. c. 64.	The Land Registry (Middlesex Deeds) Act 1891.	Section 4.
55 & 56 Vict. c. 27.	The Parliamentary Deposits and Bonds Act 1892.	The whole Act, except in so far as it has effect in relation to the Parliament of Northern Ireland.
57 & 58 Vict. c. 23.	The Commissioners of Works Act 1894.	Section 1(3).
60 & 61 Vict. c. 66.	The Supreme Court of Judicature (Ireland) (No. 2) Act 1897.	Section 11.
14 & 15 Geo. 5. c. 17.	The County Courts Act 1924.	In section 4(5), the words from " but in the case " onwards. Section 5(4).
15 & 16 Geo. 5. c. 21.	The Land Registration Act 1925.	In section 137(3), the words " and of the Mortgage Debenture Act 1865 ".
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act 1925.	Section 109A(2) to (4). In section 115(2), the proviso. In section 119(1), the words " if appointed since the commencement of the Supreme Court of Judicature (Officers) Act 1879 ". Section 123(4). In section 126(1), the proviso. Section 127(2). In section 128, in subsection (1), in proviso (i), the words from " to any person to whom " to " applied or " and proviso (ii), in subsection (2), the words " or Part IV ", and subsection (3). In Schedule 3, Part IV.

SCH. 2

Chapter	Title or Short Title	Extent to which Enactment is to cease to have Effect
18 & 19 Geo. 5. c. 26.	The Administration of Justice Act 1928.	Section 2. Section 4 from " (2) Where a person ". Section 13. Section 14(2).
25 & 26 Geo. 5. c. 2.	The Supreme Court of Judicature (Amendment) Act 1935.	Section 2(3).
4 & 5 Eliz. 2. c. 8.	The County Courts Act 1955.	Section 8. Schedule 1.
4 & 5 Eliz. 2. c. 46.	The Administration of Justice Act 1956.	Section 34(2) and (3).
7 & 8 Eliz. 2. c. 22.	The County Courts Act 1959.	Section 199.

Section 36.

SCHEDULE 3

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
42 & 43 Vict. c. 22.	The Prosecution of Offences Act 1879.	In section 8, the words from " The draft " onwards.
15 & 16 Geo. 5. c. 19.	The Trustee Act 1925.	In section 63(1), the words from " and the same shall " onwards.
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act 1925.	Section 133(4) to (6). Section 134. In section 135, the words " subject to the provisions of this Part of this Act and of the rules " and the words from " so however " to " Supreme Court ". Sections 136 to 147. Section 149. In Schedule 1, the entry relating to the Exchequer Court Act 1842, in the entry relating to the Common Law Procedure Act 1852, the words " one hundred and twenty-seven ", in the entry relating to the Summary Jurisdiction Act 1857, the words " two, three " and the words " and eleven ", and, in the entry relating to the Supreme Court of Judicature Act 1873, the word " forty-six ".

SCH. 3

Chapter	Short Title	Extent of Repeal
18 & 19 Geo. 5. c. 26.	The Administration of Justice Act 1928.	In section 15(1), the words "for and on behalf of the Supreme Court". In Schedule 1, in Part I, in the last entry, the words "two, three" and the words "and eleven".
26 Geo. 5 & 1 Edw. 8. c. 34.	The Finance Act 1936.	Section 32.
12, 13 & 14 Geo. 6. c. 67.	The Civil Aviation Act 1949.	In section 43(3) and (6)(a), the words "for and on behalf of that court".
7 & 8 Eliz. 2. c. 22.	The County Courts Act 1959.	In section 120(3), the words from "and when" onwards. Section 134(1). In section 169, the words "and the Commissioners". Section 171. Section 174(3). In section 175, the words "Section sixty-three of the Trustee Act 1925 and". In section 176, the definitions of "money in court" and "securities in court".
7 & 8 Eliz. 2. c. 72.	The Mental Health Act 1959.	In Schedule 7, in Part I, in the entry relating to the Supreme Court of Judicature (Consolidation) Act 1925, the words "In section one hundred and forty-nine, for the words 'the Lord Chancellor and any person exercising the powers of the judge in lunacy' there shall be substituted the words 'the authority having jurisdiction under Part VIII of the Mental Health Act 1959'".
8 & 9 Eliz. 2. c. 16.	The Road Traffic Act 1960.	In section 202(1), the words "for and on behalf of the Supreme Court". In section 204(2), the words "for and on behalf of the Supreme Court".